BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **FEDERAL EXPRESS CORPORATION; and DOES 1 through 10, inclusive,** Defendants.	Case No. 2:26-cv-02881-DAD-SCR **PLAINTIFF'S FIRST SET OF REQUESTS FOR PRODUCTION OF DOCUMENTS TO DEFENDANT FEDERAL EXPRESS CORPORATION** Propounding Party: Plaintiff Responding Party: Defendant Federal Express Corporation Set No.: One (Fed. R. Civ. P. 26, 34) Magistrate Judge: Hon. Sean C. Riordan District Judge: Hon. Dale A. Drozd

PLAINTIFF'S FIRST SET OF REQUESTS FOR PRODUCTION OF DOCUMENTS TO DEFENDANT FEDERAL EXPRESS CORPORATION

TO DEFENDANT FEDERAL EXPRESS CORPORATION AND ITS ATTORNEY OF RECORD:

Under Federal Rules of Civil Procedure 26 and 34, Plaintiff Brendan Ngehsi Newanforbi requests that Defendant Federal Express Corporation serve a written response within thirty (30) days after service (plus three days if service is by mail under Rule 6(d)), and produce the documents requested below at that time or by another reasonable date stated in the

response.

Place and manner of production: by delivery of copies to Plaintiff at 1455 Cat Tail Drive, Stockton, California 95204, or by secure electronic delivery to bnn.cdl@gmail.com.

INSTRUCTIONS

1. Produce documents in Your possession, custody, or control, including documents that You have the legal right to obtain on demand from Your affiliates, agents, or vendors (including First Advantage).

2. Produce electronically stored information as searchable PDF, except that spreadsheets, audit logs, and applicant-tracking-system data should be produced in native or other reasonably usable form with metadata showing dates and authors (Rule 34(b)(1)(C), (b)(2)(E)).

3. Organize and label documents to correspond to the requests, or produce them as kept in the usual course of business (Rule 34(b)(2)(E)(i)). Bates-number each page.

4. For each request, state whether responsive documents are being withheld on the basis of any objection (Rule 34(b)(2)(C)). For any document withheld as privileged, serve the information required by Rule 26(b)(5)(A) with the production, not at the close of discovery.

5. If a responsive document no longer exists, identify it and explain the circumstances of its loss or destruction.

6. The Definitions below are the same as those in Plaintiff's First Set of Interrogatories, served with these requests.

DEFINITIONS

1. **"FedEx," "Defendant," "You," and "Your"** mean Defendant Federal Express Corporation and, to the extent it acted for or with Federal Express Corporation in connection with Plaintiff's applications, background screening, or hiring decisions, any parent, subsidiary, or affiliate (including FedEx Ground Package System, Inc. and any unit identified as "FEDEX GROUND HR"), and their officers, employees, agents, and vendors.

2. **"Plaintiff"** means Brendan Ngehsi Newanforbi, including under any variation of that name (for example, Brendan Ngwa Nforbi, Brendan Ngwanforbi, or Ngwa-Nforbi).

3. **"First Advantage"** means First Advantage Background Services Corp. and any affiliate that prepared or furnished a background report about Plaintiff to FedEx.

4. **"Report"** means every consumer report, investigative consumer report, background report, and update or version of one, concerning Plaintiff that First Advantage or any other consumer reporting agency furnished to FedEx, including the report FedEx admits (Answer, ECF No. 4, paragraphs 17, 20, 34) was provided to it on or before March 10, 2025.

5. **"Adverse Action"** means FedEx's decision to deny Plaintiff employment, and to withdraw any conditional offer of employment, in or about March 2025, including the adverse-action notice dated on or about March 19, 2025.

6. **"Registry Information"** means any information identifying Plaintiff as a registered sex offender, from any source, including the California Department of Justice Megan's Law website (Cal. Penal Code § 290.46), the National Sex Offender Public Website (NSOPW), any state registry, or any database compiled from them.

7. **"Prior Employment"** means each period, before January 2025, in which FedEx hired or employed Plaintiff, and each application Plaintiff submitted to FedEx before January 2025.

8. **"Document"** and **"communication"** have the broadest meaning allowed by Fed. R. Civ. P. 34(a)(1)(A), and include electronically stored information such as email, chat and instant messages, applicant-tracking-system records (including Paradox and Workday), portal records, notes, and audit logs.

9. **"Identify,"** for a person, means full name, job title, employer, and last known business address; for a document, its date, author, recipients, type, and Bates number if produced.

10. Unless otherwise stated, the relevant period is January 1, 2024 through the present, except that requests about Prior Employment cover any time.

DOCUMENTS REQUESTED

REQUEST FOR PRODUCTION NO. 1:

All documents concerning each application Plaintiff submitted to You at any time, including the application reflected in the July 17, 2024 confirmation from fedex@paradox.ai and the application You describe as submitted in January 2025, together with all forms Plaintiff completed, including the forms dated on or about January 8, 2025.

REQUEST FOR PRODUCTION NO. 2:

Plaintiff's complete personnel, onboarding, and separation files for each period of Prior Employment.

REQUEST FOR PRODUCTION NO. 3:

Each Report, in every version and in the form furnished to You, including all attachments, component results, and updates.

REQUEST FOR PRODUCTION NO. 4:

All communications between You and First Advantage concerning Plaintiff, including portal messages, emails, adjudication notes, and status updates.

REQUEST FOR PRODUCTION NO. 5:

All documents reflecting the adjudication, scoring, or eligibility determination applied to each Report, including any "client criteria," eligibility matrix, or adjudication guideline used.

REQUEST FOR PRODUCTION NO. 6:

Each conditional offer of employment, offer letter, or offer communication extended to Plaintiff at any time.

REQUEST FOR PRODUCTION NO. 7:

Each pre-adverse action notice and adverse-action notice sent to Plaintiff at any time, with all enclosures, in the form sent, together with any drafts and distribution lists, and documents showing the dates and method of delivery.

REQUEST FOR PRODUCTION NO. 8:

All documents You relied on, reviewed, or considered in taking the Adverse Action.

REQUEST FOR PRODUCTION NO. 9:

All internal communications (including email, chat, and instant messages) concerning Plaintiff's 2025 application, the Report, or the Adverse Action.

REQUEST FOR PRODUCTION NO. 10:

All documents supporting Your contention that Plaintiff's application "contained material misrepresentations that independently justified the hiring decision" (ECF No. 10 at 2).

REQUEST FOR PRODUCTION NO. 11:

All documents supporting Your Eighth Affirmative Defense (use of information to protect a person at risk).

REQUEST FOR PRODUCTION NO. 12:

All policies, procedures, guidelines, and training materials in effect at any time from January 1, 2024 through March 31, 2025 concerning the use of criminal history or Registry Information in hiring decisions for positions in California, including materials on the California Fair Chance Act (Gov. Code § 12952).

REQUEST FOR PRODUCTION NO. 13:

All policies, procedures, guidelines, and training materials in effect at any time from January 1, 2024 through March 31, 2025 that refer to California Penal Code section 290.46 or the Megan's Law website.

REQUEST FOR PRODUCTION NO. 14:

The portions of each agreement, statement of work, or package configuration between You and First Advantage in effect during 2024 or 2025 that govern the searches ordered for California applicants, any sex offender registry search, adjudication criteria, or compliance with California law. Pricing terms may be redacted.

REQUEST FOR PRODUCTION NO. 15:

The job posting, job description, and documents sufficient to show the duties of each position for which Plaintiff applied or was considered in 2024 or 2025.

REQUEST FOR PRODUCTION NO. 16:

Documents sufficient to show the hourly wage, expected hours, and benefits of the position for which Plaintiff was considered in 2025.

REQUEST FOR PRODUCTION NO. 17:

All applicant-tracking-system records concerning Plaintiff (including Paradox, Workday, and any successor or related system), including status histories, notes, and audit logs.

REQUEST FOR PRODUCTION NO. 18:

All disclosure and authorization forms concerning background reports that Plaintiff signed or acknowledged at any time, and all documents showing whether Plaintiff requested a copy of any Report.

REQUEST FOR PRODUCTION NO. 19:

Documents sufficient to show the date and time You received each Report.

REQUEST FOR PRODUCTION NO. 20:

Documents sufficient to show each First Advantage account, client code, order, or search ID number used for Plaintiff.

REQUEST FOR PRODUCTION NO. 21:

Documents sufficient to show the date, scope, and recipients of any litigation hold covering Plaintiff's application files, the Report, or communications with First Advantage.

REQUEST FOR PRODUCTION NO. 22:

All documents concerning any background check performed on Plaintiff in connection with any period of Prior Employment.

REQUEST FOR PRODUCTION NO. 23:

All documents identified, referred to, or relied on in Your answers to Plaintiff's First Set of Interrogatories.

REQUEST FOR PRODUCTION NO. 24:

All nonprivileged written or recorded statements of any witness concerning the facts of this action.

REQUEST FOR PRODUCTION NO. 25:

All nonprivileged documents obtained from a third party that You reviewed, relied on, or may use to support a claim or defense in this action.

REQUEST FOR PRODUCTION NO. 26:

A native or readable export of Plaintiff's 2025 application, including every question, answer, certification, timestamp, revision, and audit field.

REQUEST FOR PRODUCTION NO. 27:

Audit logs showing when, how, and by whom the Report or any component of it was ordered, received, displayed, accessed, downloaded, transmitted, or evaluated.

REQUEST FOR PRODUCTION NO. 28:

Each policy, standard, rubric, or instruction in effect from January through March 2025 that defines a material application misrepresentation or prescribes the consequences of one.

REQUEST FOR PRODUCTION NO. 29:

All documents showing when You first identified each alleged misrepresentation in Plaintiff's application and what action You took because of it.

REQUEST FOR PRODUCTION NO. 30:

All documents comparing or relating any answer on Plaintiff's 2025 application to any answer he gave on an earlier application to FedEx.

REQUEST FOR PRODUCTION NO. 31:

Every warning, notice, compliance material, or term that First Advantage supplied to You concerning permissible or prohibited uses of the Report or of sex offender registry information, including California Penal Code section 290.46.

REQUEST FOR PRODUCTION NO. 32:

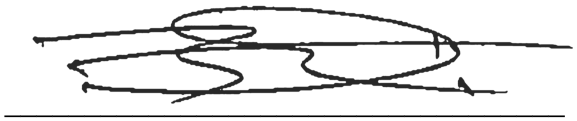
Documents sufficient to show whether, when, and at what pay rate and expected hours the position for which Plaintiff was considered in 2025 was filled, with personal identifiers of any nonparty redacted.

REQUEST FOR PRODUCTION NO. 33:

Any insurance agreement under which an insurer may be liable to satisfy all or part of a judgment in this action, or to indemnify or reimburse payments made to satisfy it (Fed. R. Civ. P. 26(a)(1)(A)(iv)).

Dated: September 25, 2026

Respectfully submitted,



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Propria Persona

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI
Plaintiff

Case Number: 2:26-cv-02881-DAD-SCR

V.

FEDERAL EXPRESS CORPORATION; and
DOES 1 through 10, inclusive
Defendants

PROOF OF SERVICE

/

I hereby certify that on September 25, 2026, I served a copy of the attached

Plaintiff's First Set of Requests for Production to Defendant FedEx (Set One),

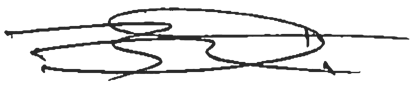
by placing a copy in a postage paid envelope addressed to the person(s) hereinafter listed, by depositing said envelope in the United States Mail at San Jose, California;

and, on the same date, by transmitting a true copy by electronic mail (PDF attachments) to the e-mail address hereinafter listed:

(List Name and Address of Each Defendant or Attorney Served)

Allison A. Kray, Esq. (SBN 312544)
Federal Express Corporation
2601 Main Street, Suite 1100
Irvine, CA 92614
allison.kray@fedex.com
Attorney for Defendant Federal Express Corporation

I declare under penalty of perjury that the foregoing is true and correct.



Brendan Ngehsi Newanforbi, In Propria Persona